

#	Case Name	Tentative
1.	HARRIS VS. FRESENIUS VASCULAR CARE, INC. 2023-01363455	1. MOTION TO APPEAR PRO HAC VICE 2. MOTION TO APPEAR PRO HAC VICE 3. MOTION TO APPEAR PRO HAC VICE The applications of Hannah F. Preston, Megan Heinsz, and James F. Bennett to appear pro hac vice as counsel for defendants Fresenius Vascular Care, Inc., Fresenius Medical Care Holdings, Inc. dba Fresenius Medical Care North America, Fresenius Vascular Care Tustin MSO, LLC and Paul Toomey in this matter are hereby GRANTED. Plaintiff's arguments in opposition to the applications lack merit for the reasons stated in Defendants' reply. Plaintiff repeatedly mentions the applicants' purported admissions in California over the past <i>decade</i>, without identifying those admissions. However, Rule 9.40 is only concerned with prior admissions within the past two years. (See Cal. Rules of Court, Rule 940(d)(5).) During that time frame, the applicants were admitted pro hac vice no more than three other times. The applicants have each satisfied all the requirements of California Rules of Court, Rule 9.40. Defendants are ordered to give notice.
2.	DOE VS. IHERB, LLC. 2025-01505285	1. MOTION TO STRIKE Defendants iHerb, LLC and Trent Kruse's Motion to Strike Plaintiff's Jane Doe Designation is DENIED as MOOT. Defendants filed a motion to strike Plaintiff's Jane Doe Designation with respect to Plaintiff's First Amended Complaint (FAC). On 6/26/26, Plaintiff filed a Second Amended Complaint. (ROA 71.) Thus, to the extent Defendants' motion refers to the designation in the FAC it is moot. 2. MOTION ALLOWING PLAINTIFF TO USE PSEUDONYM Plaintiff alleges she may have been the victim of a sexual assault by her employer's Senior Vice President during a work event. (SAC ¶¶ 20-32.) Plaintiff moves to proceed pseudonymously in this action as "Jane Doe." The right to access court proceedings necessarily includes the right to know the identity of the parties. (<i>Dept. of Fair Emp. and Housing v. Superior Court of Santa Clara County</i> (2022) 82 Cal.App.5th 105, 111 [citation omitted].) "Because of the inherently sensitive nature of some proceedings, statutes specifically allow for

keeping certain parties’ identities confidential.” (*Id.* at p. 110 [citing statutes].) “Even in the absence of a statute, anonymity for parties may be granted when necessary to preserve an important privacy interest.” (*Id.* [citations omitted].)

“Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party’s request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public’s right to access judicial proceedings.” (*Id.* at pp. 111-112 [citation omitted].)

Plaintiff requests to proceed in this action under a pseudonym due to the nature of the allegations and the sensitive and private nature of her mental health diagnoses and treatment following the sexual assault.

Defendants contend the potential for reputational harm and stigma are insufficient to support proceeding anonymously and Plaintiff has failed to demonstrate any risk of such harm. Defendants further contend proceeding anonymously would prejudice Defendants in their investigation of the case and in conducting discovery, particularly with respect to identifying Plaintiff to third parties.

As an initial matter, Defendants do not dispute they are aware of Plaintiff’s identity. “Since the employee’s identity is known to the defendant, proceeding anonymously would not similarly intrude on the defendant’s rights.” (*Dept. of Fair Emp. and Housing, supra*, 82 Cal.App.5th at p. 110.)

“[A]llowing a party to litigate anonymously impacts the First Amendment public access right,” however, which then requires the analysis set forth above. “Courts in California have recognized at least two interests . . . as potentially sufficient to allow for redaction of names. These are: first, maintaining privacy of highly sensitive and potentially embarrassing personal information and second, protecting against the risk of retaliatory harm. These interests have also been recognized in the Ninth Circuit.” (*Roe v. Smith* (2025) 116 Cal.App.5th 227, 239-240 [cleaned up].)

In the Ninth Circuit, “[c]ourts have generally permitted to proceed anonymously when their claims involved allegations of sexual assault or rape.” (*Doe v. Rose* (C.D. Cal. June 17, 2026) 2016 WL 9137645) [listing cases]; *see also Doe v. United Airlines, Inc.* (D. Nev. Aug. 21, 2018) 2018 WL 3997258 [“District Courts within the Ninth Circuit ‘uniformly allow plaintiffs alleging sexual assault to proceed under pseudonyms.’”].)

Defendants rely on *Roe v. Smith* (2025) 116 Cal.App.5th 227 to argue reputational harm related to sexual assault allegations do not outweigh the public's interest in disclosure. *Smith* is distinguishable, however, as it involved a cause of action for defamation based on rumors of sexual assault by a student against another student. (116 Cal.App.5th 227, 234.) The plaintiff brought the action after the school's investigation found he was "not responsible" for any of the claims brought against him. (*Ibid.*)

This action does not involve the reputation of a plaintiff who was accused of sexual assault, but a plaintiff who alleges she herself was sexually assaulted and that the assault led to her mental disability for which she now receives treatment.

Sexual assault is a highly sensitive and personal, and the Court finds a pseudonym is appropriate here to maintain Plaintiff's privacy interests. Moreover, while the public has some interest in Plaintiff's identity, there is also a strong interest in encouraging victims of sexual assault to bring claims against their assailants.

Defendants primarily contend proceeding anonymously would cause significant prejudice to Defendants in their investigation of the case. Defendants contend, for example, their investigation would be impaired if prevented from identifying Plaintiff in discovery, including with respect to identifying witnesses and obtaining medical records.

As an initial matter, Plaintiff requests:

- (1) She be allowed to use the pseudonym Jane Doe in depositions, hearings, and all documents filed on the public docket;
- (2) The Court adopt procedures regarding confidential disclosure of her true name and other identifying characteristics; and
- (3) The Court enter a corresponding Protective Order governing the disclosure of confidential information in this action.

(Mtn. at 1:10-15.)

As such, it does not appear Plaintiff is requesting a blanket use of a pseudonym for all purposes, including discovery. Plaintiff also states she is "willing to stipulate to any reasonable condition Defendants would need for discovery purposes." (Reply at 5:12-13.)

While the Court is inclined to grant the motion, the Court intends to further discuss and clarify the scope of Plaintiff's request with counsel.